

INTRODUCED: 1/5/2026

REFERRED TO: Committee of the Whole

SPONSOR: Councilors J. Brown and Wells

DIGEST: urges data center developers to heed community voices

SOURCE:

Initiated by: Councilor Jesse Brown

Drafted by: Councilor Jesse Brown

LEGAL REQUIREMENTS FOR ADOPTION:

Subject to approval or veto by Mayor

PROPOSED EFFECTIVE DATE:

Adoption and approvals

GENERAL COUNSEL APPROVAL:



Date: December 30, 2025

CITY-COUNTY SPECIAL RESOLUTION NO. , 2026

PROPOSAL FOR A SPECIAL RESOLUTION urging data center developers to heed community voices.

WHEREAS, hundreds of taxpayers and residents of Indianapolis and Marion County have participated in public meetings, rallies, and protests against proposed data center developments in the second half of 2025; and

WHEREAS, several high-profile data center developments have utilized non-disclosure agreements (NDAs) which have prevented all taxpayers and residents from learning details about the proposed developments early in the development process; and

WHEREAS, Indianapolis-Marion County's current zoning and planning processes do not always allow the City-County Council to vote on approving data center projects; and

WHEREAS, the State of Indiana offers a number of very competitive tax abatements, including a potential 50-year sales tax exemption for data centers, but

WHEREAS, three counties in Indiana have adopted complete moratoriums on all data center projects in their counties; now, therefore:

BE IT RESOLVED BY THE CITY-COUNTY COUNCIL OF THE
CITY OF INDIANAPOLIS AND OF MARION COUNTY, INDIANA:

SECTION 1. The City-County Council of Indianapolis and Marion County calls for developers currently working on proposals involving data centers to transparently engage with the community without the use of Non-Disclosure Agreements and seek mutually beneficial Community Benefit Agreements.

SECTION 2. Developers are discouraged from pursuing local tax abatements for their projects.

SECTION 3. The City-County Council would prefer to avoid the need for a total moratorium on all data centers, and is thus offering guidance as to our wishes for developers.

SECTION 4. The Mayor is invited to join in this resolution by affixing his signature hereto.

SECTION 5. This resolution shall be in full force and effect upon adoption and compliance with IC 36-3-4-14.

The foregoing was passed by the City-County Council this ____ day of _____, 2026, at ____ p.m.

ATTEST:

Vop Osili
President, City-County Council

Yulonda Winfield
Clerk, City-County Council

Presented by me to the Mayor this ____ day of _____, 2026, at 10:00 a.m.

Yulonda Winfield
Clerk, City-County Council

Approved and signed by me this ____ day of _____, 2026.

Joseph H. Hogsett, Mayor